



DEPARTMENT OF THE NAVY
NAVAL FACILITIES ENGINEERING SYSTEMS COMMAND NORTHWEST
1101 TAUTOG CIRCLE
SILVERDALE WASHINGTON 98315-1101

ANNEX 1 – JUSTIFICATION AND APPROVAL

J&A No. 25-07JA

JUSTIFICATION AND APPROVAL FOR USE OF OTHER THAN FULL AND OPEN COMPETITION

1. Contracting Activity.

Department of the Navy, Naval Facilities Engineering Systems Command Northwest (NAVFAC NW), Silverdale, Washington.

2. Description of the Action Being Approved.

Request authority to award a bridge contract on a sole source basis to [REDACTED] that will allow a one-year extension to Contract N44255-18-D-5009 and increase contract capacity in the amount of \$45,437,433. A bridge contract is required for uninterrupted Regional Facilities Services for various military installations within the Area of Responsibility (AOR) of NAVFAC NW. The current contract period of performance expires on 31 March 2025. This is a single source contract awarded to an AbilityOne contractor, [REDACTED].

In accordance with the Navy Marine Corps Acquisition Regulation Supplement 5206.303-2(a)(iv), an approved Request for Bridge Contract (signed on 27 January 2025) is provided with this Justification and Approval (J&A).

3. Description of Supplies/Services.

This is a single source indefinite delivery/indefinite quantity contract awarded to a mandatory AbilityOne provider on 01 October 2019. The work will include providing all management, supervision, labor, materials, and equipment necessary to provide services for: Public Safety (Fire and Emergency Services), Material Management (Warehousing), and Facility Support (Facility Investment, Custodial, Naval Undersea Warfare Center Custodial (NUWC), Naval Bureau of Medicine and Surgery (BUMED) Custodial, Pest Control, Integrated Solid Waste Management, Portable Toilets, Grounds Maintenance, and Pavement Clearance) as outlined by Annex and described in the Performance Work Statement (PWS) at various locations and facilities on Naval Air Station Whidbey Island, Naval Station Everett, Naval Base Kitsap. The AOR is made up of 11 States with four (4) active installations containing 11 active sites, 14 Navy Operational Support Centers, and four (4) additional special areas.

Estimated Dollar Value

01 April 2025 to 31 March 2026

OM&N Recurring	\$37,881,876
OM&N Non-Recurring	\$7,555,557
Total Bridge Estimate	\$45,437,433

The types of funding include Operations & Maintenance Navy, Defense Health Fund, Operations & Maintenance Marine Corps, and Family Housing Operations & Maintenance Navy Funds.

4. Statutory Authority Permitting Other Than Full and Open Competition.

10 U.S.C. 3204(a)(1), Only one responsible source and no other supplies or services will satisfy agency requirements.

5. Rationale Justifying Use of Cited Statutory Authority.

The current contract expires on 31 March 2025. The incumbent contractor is the only source capable of performing the required base operations support services without unacceptable delays, disruption of services, and substantial duplication of costs. Without this vehicle, there is imminent risk of base service requirements and critical facilities support being unmet until the subsequent contract is awarded, which will jeopardize the command's mission to support the warfighter.

The Government is in the process of acquiring a successor contract to the current West Sound Base Operations Contract (WSBOSC). The current contract, N62470-20-D-0001 is a Firm-Fixed-Price Award Fee (FPAF), Indefinite Delivery Indefinite Quantity (IDIQ) vehicle comprised of a base year and seven option years with a Period of Performance (PoP) of 01 April 2020 to 31 March 2028. The procurement was awarded using Full and Open Competition and is currently in Option Year Four with a Not to Exceed (NTE) contract value of \$445,155,339.57. These services are critical to Naval Base Kitsap (NBK) infrastructure maintenance.

As evidenced by the Contractor Performance Assessment Report, the client has indicated the WSBOSC Contractor's performance through 31 March 2023 is Marginal. In addition, as of this date, the client has advised that the Contractor continues to perform Marginally. Information contained in the Contractor Performance Reporting System (CPARs) and verified 18 April 2024 exhibits that the majority of [REDACTED] performance ratings range from Satisfactory and Exceptional; however, information contained in the Contractor Performance Assessment Report provides marginal performance ratings for the second year of this contract. It was determined that exercising the remaining option periods of the WSBOSC is not in the Government's best interest under FAR 17.207 (Exercise of Options).

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The Government's strategy for acquiring the successor West Sound Base Operations Contract is to combine the WSBOSC and RFSC requirements under [REDACTED], obtaining the same type of leading maintenance mobility and logistics management successfully utilized on the North Sound Base Operations Contract (NSBOSC) and RFSC.

The use of a bridge contract allows for the solicitation of the WSBOSC and re-organization of the RFSC under one award. To ensure that sufficient time to allow meaningful negotiations is allowed; a bridge contract is a necessary requisite to prevent an interruption of these critical services. BPMS – S-17.1.3 states that determination if the requirement is consolidated and/or bundled does not apply to procurements placed under mandatory sources in FAR 8.002 and FAR 8.003. FAR 8.002 (a)(1)(iv) lists “supplies which are on the Procurement List maintained by the Committee for Purchase From People Who Are Blind or Severely Disabled.”

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable.

This is a single source contract awarded to a mandatory AbilityOne service provider. A synopsis of the proposed sole source procurement was published on the System for Award Management (SAM) on 22 October 2024 which stated that the Government intends to solicit and negotiate with only one source under the authority of FAR 6.302.

Market Research to seek other sources was conducted in accordance with FAR Part 10 in collaboration with SourceAmerica. SourceAmerica has a network of approved nonprofit agencies to satisfy federal government contracting needs under the AbilityOne program. A search for potential sources to perform the RFSC contract was conducted using the AbilityOne.gov Search Services website page (https://www.abilityone.gov/procurement_list/index.html). The search revealed only one source on the Procurement List, which is [REDACTED], for the current RFSC contract (N44255-18-D-5009). SourceAmerica confirmed [REDACTED] as the Non-Profit Agency (NPA) qualified and capable of performing the RFSC requirement.

7. Determination of Fair and Reasonable Cost.

The Contracting Officer has determined the anticipated cost to the Government of the services covered by this J&A will be fair and reasonable.

8. Actions to Remove Barriers to Future Competition.

This requirement is on the AbilityOne Procurement List and therefore all resultant contract actions are to be made with [REDACTED], the mandatory AbilityOne provider for these services.

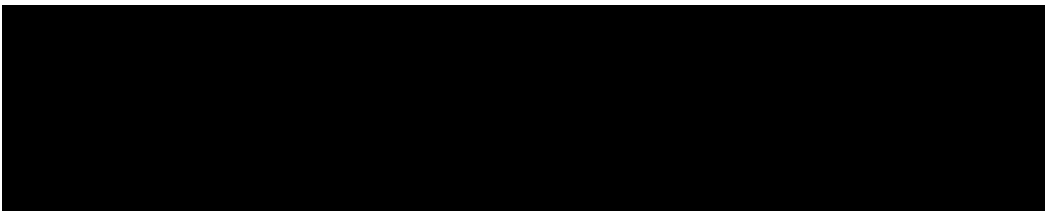
As this is a follow-on for services previously awarded on a non-competitive basis, in accordance with DFARS PGI 206.304(a)(S-70)(i), the prior J&A was provided to the approval authority for review. Approval of this J&A signifies the approval authority has made the determination required by DFARS PGI 206.304(a)(S-70)(ii).

CERTIFICATIONS AND APPROVAL

TECHNICAL/REQUIREMENTS CERTIFICATION

I certify that the facts and representations under my cognizance which are included in this Justification and its supporting acquisition planning documents, except as noted herein are complete and accurate to the best of my knowledge and belief.

Technical Cognizance:

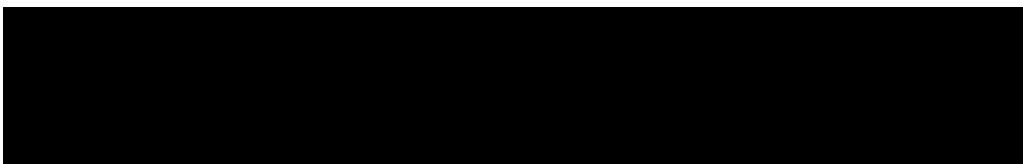


Requirements Cognizance:



LEGAL SUFFICIENCY REVIEW

I have determined this Justification is legally sufficient.



CONTRACTING OFFICER CERTIFICATION

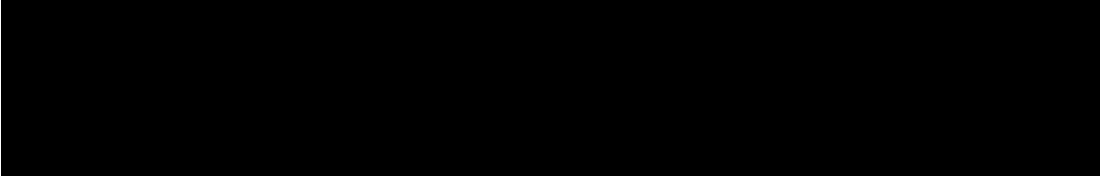
I certify that this Justification is accurate and complete to the best of my knowledge and belief.

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ECH IV ACTIVITY CHIEF OF THE CONTRACTING OFFICE APPROVAL

Upon the basis of the above justification, I hereby approve, as Chief of the Contracting Office, the solicitation of the proposed procurement described herein using other than full and open competition, pursuant to the authority of 10 U.S.C. 3204(a)(1).



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ASSISTANT COMMANDER FOR CONTRACTING APPROVAL

Upon the basis of the above justification, I hereby approve, as Chief of the Contracting Office, the solicitation of the proposed procurement described herein using other than full and open competition, pursuant to the authority of 10 U.S.C. 3204(a)(1).

